

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVMQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

DAVID STEWART,

Respondent

) Case Number: FCS-11-346715

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom at 10am on 5/19/2026 in Department 404 to discuss Father's parenting time. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above

A. Procedural History

- 1) David Stewart (Father) and Lilia Scott (Mother) have one minor child together, Cybelle (DOB 12/8/2010, age 15). Mother has sole legal and sole physical custody of Cybelle.
- 2) In an order filed 3/26/2025, the Court noted it had “just recently granted Father unsupervised visitation after essentially a lifetime of estrangement.” The Court issued various orders including an order for unsupervised parenting time for Father twice a month for 2 hours per visit in a public place, and for Father's younger son Bruce to attend the visits until and unless the parties agree otherwise.
- 3) On 1/27/2026, Father filed a request for joint legal custody and 70/30 physical custody “or some form of equal shared parenting,” “for any weekend or weekday with a ‘Step up’ . . . strategy in

place.” He states that Mother allowed him to see Cybelle only 17 times from March to December 2025 and was inflexible in the scheduling of visits, including using Bruce's unavailability as a reason to cancel visits. He states he is developing a bond with Cybelle and that Cybelle told him she wants to spend more time with him but “sound[ed] timid about discussing more Dad time with her mom due to fear of retaliation.”

- 4) Mother filed a response in which she notes that she and Cybelle participated in Rally visits and two rounds of reunification therapy before the current parenting time schedule was put in place. She states the custody orders are final, Montenegro orders. She states Father saw Cybelle only a few times when she was a baby and then disappeared for 9 years. She states Father exercised only 8 of his court-ordered visits over the past year, or 16 hours total, and that Father has repeatedly said he is willing to spend less time with Cybelle if he is able to pay less in child support. Mother denies that she interferes with Father’s relationship with Cybelle. She states that when Father does not schedule his visits or does not confirm in time, she asks Cybelle if she would like to suggest alternatives, and she says she would like to skip the visits. Cybelle also says she does not want Father to have her phone number or contact her directly. Mother requests a Tier II interview if the Court is inclined to order significantly more parenting time for Father.
- 5) On 4/9/2026, the parties appeared at the hearing on Father's request, but the matter was continued to 5/19/2026 after Father informed the Court that he wished to retain counsel before proceeding with the hearing.
- 6) On 5/7/2026, Mother filed an update declaration informing the Court that Father has not scheduled any visits with Cybelle since the last hearing.
- 7) On 5/15/2026, Father filed a Notice of Limited Scope Representation by attorney Tracy Henderson as well as a request for judicial notice of various documents.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Mother shall continue to have sole legal and sole physical custody of Cybelle.

3) **The parties are ordered to appear in person or via Zoom at 10am on 5/19/2026 in
Department 404 to discuss Father's parenting time.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERIC ROUSSEL,

Petitioner

VS.

VALERIYA STEPANOVA,

Respondent

) Case Number: FPT-25-378763

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner name (Father) and respondent name (Mother) appeared with counsel on 2/17/2026 on
Father's request for order. After meeting and conferring, they informed the Court they had
reached an agreement regarding most or all of the issues in dispute regarding custody and
parenting time of their minor child, Alexander (DOB 11/7/2013, age 12), and would be
submitting a Stipulation and Proposed Order to the Court. They requested a review hearing to
address any remaining disputes, and the Court scheduled a review hearing for 5/19/2026. The
Court ordered the parties to submit update declarations at least 10 days before the review hearing
informing the Court of any remaining issues.
- 2) The Court has not received a Stipulation and Proposed Order from the parties, and neither party
has filed an update declaration.

B. Findings and Orders

- 1) The matter is taken off calendar. The parties shall submit any Stipulation and Proposed Order to the Court for review and signature. If either party seeks any additional custody or parenting time orders, they may file a new request for order with the Court.
- 2) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL JERMAINE WHITE,

Petitioner

VS.

MARISSA MASUMITSU,

Respondent

) Case Number: FMS-19-387225

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING; REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD
CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Michael Jermaine White (Father) and Marissa Masumitsu (Mother) have one minor child together, Zendaya (DOB 2/9/2014, age 12).
- 2) At the last hearing on 3/17/2026, the Court maintained sole legal and sole physical custody to Mother with supervised visits for Father at Rally Family Visitation Services (Rally). The Court set a review hearing for 5/19/2026 and ordered the parties to file and serve update declarations at least 10 days before the review hearing.
- 3) Neither party has filed an update declaration.
- 4) The Court has received a report from Rally that both parties have now completed their intake and that once Father submits payment, the parties will be placed on the waitlist for visits.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child is the United States.

- 3 2) The review hearing is continued to **8/27/2026 at 9am in Department 404** so that visits may
4 begin before the parties return to Court. At least days before the 8/27/2026 hearing, the parties
5 shall file and serve update declarations informing the Court how the visits have been going and
6 what the parties' requests are as to parenting time going forward.
- 7 3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YENNIE SOLHEIM FULLER,

Petitioner

VS.

XAVIER R. FULLER,

Respondent

) Case Number: FDI-19-791885

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: APPOINT CLERK OF COURT AS ELISOR TO SIGN RE-ENROLLMENT
CONTRACTS

TENTATIVE RULING

The parties are ordered to appear at 11am on 5/19/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yennie Solheim (Mother) and Respondent Xavier Fuller (Father) were married in 2013 and separated in 2019. They have two minor children together, Chloe (DOB 7/8/2016, age 9) and Heidi (DOB 5/20/2019, almost 7). A Judgment of Dissolution was filed 7/8/2022. The Judgment included the parties' agreement to share joint legal and joint physical custody of the children, with Father to have the children overnight every Wednesday to Thursday and Sunday to Monday, certain holidays, and daily FaceTime calls. Mother is represented by attorney Ashley Rodet. Father is represented by attorney Mary Needham.

- 2) On 11/10/2024, Mother filed an ex parte request seeking temporary sole legal and physical custody based on Father's paranoid and delusional behavior. She asked that all visits be suspended or supervised pending Father's undergoing a psychological evaluation. The Court maintained the joint legal custody order but granted temporary sole physical custody to Mother with a step-up from professionally supervised visits to unsupervised visits for Father. On 6/11/2025, the Court ordered the parties to undergo a custody evaluation.
- 3) At a 9/16/2025 review hearing, the Court maintained joint legal custody and sole physical custody to Mother and issued orders relating to the custody evaluation as well as a detailed parenting time schedule for Father.
- 4) On 4/2/2026, the Court held a hearing on Mother's ex parte request regarding school choice. The Court ordered the parties to commit to re-enroll in San Francisco Friends School but in the meantime to look in good faith for alternative schools viable to enroll the children. The Court ordered the parties to sign and submit the school contract for San Francisco Friends School no later than 5/4/2026 to avoid the risk of missing a deadline and ordered Mother to request an extension for payment of the \$15,000 deposit for the school tuition. The Court further ordered the parties to file update declarations no later than 5/1/2026 on the issue of school choice, for the Court to make any additional orders as necessary.
- 5) On 4/17/2026, Mother filed an ex parte request seeking temporary sole legal and sole physical custody of both children based on statements the children made indicating Father had sexually abused them. Mother asked that Father's visits—i.e., Wednesdays from 1:30pm to 4:30pm and Saturdays from 10:30am to 5:30pm and Facetime calls on Tuesdays and Thursdays at 6:30pm—be suspended pending an investigation by Child Protective Services and the San Francisco Police Department. This Court granted the ex parte request pending a hearing on shortened time on 5/12/2026.
- 6) On 4/30/2026, Mother filed an Update Declaration Re: School Enrollment. Mother states that San Francisco Friends School has informed her that a tuition deposit is not required for returning families until beginning of next year. Mother also stated that she had not received any communications from Father or counsel regarding any proposed alternative school enrollment

options and so is requesting that the Court maintain is prior order requiring Father to sign the re-enrollment contract for San Francisco Friends School no later than 5/4/2026.

- 7) On 5/6/2026, Father filed a Declaration Re School Choice. Father asks the Court to delay a school decision for the children until the custody evaluation has been completed. Father states the SFUSD open enrollment window has not closed, and viable public school placements remain available for both children through September 2026. Father states the following placements are open “as of April 30, 2026” (when his declaration was originally due): McKinley Elementary School (Chloe’s former school from Kindergarten through 2nd grade), John Muir Elementary School (school selected prior to switching Chloe to McKinley for Kindergarten), and Woodside Elementary School (in San Mateo County where Father resides). Father states that due to Mother’s actions, San Francisco Friends School does not treat Father as an equal parent and rather treats him as a security concern. Father states that this has had impacts on their children’s participation in peer activities during his custodial time and places the children in the middle of parental contact contrary to the children’s best interest. Father states that Mother has made false allegations of sexual abuse which has halted the custody evaluation, prevented timely school decision-making, and destabilized the children’s lives. Father does not agree to voluntarily pay private school tuition.
- 8) On 5/8/2026, Mother filed an ex parte Request for Order asking the Court to appoint an elisor to sign the San Francisco Friends School re-enrollment contracts. Mother states that Father has not signed the re-enrollment contracts, despite the Court-ordered deadline that he do so by 5/4/2026. Mother also states that Father’s attorney had not responded to emails from her attorney about this matter. Mother asks the Court to appoint the Clerk of the Court as elisor to sign the re-enrollment contracts, copies of which she attaches to her ex parte Request for Order as Exhibits C and D.
- 9) On 5/8/2026, Father filed a Responsive Declaration. Father states that there is no urgency here and he should not be required to sign the re-enrollment contracts for San Francisco Friends School when that school has not been selected by the Court. Father also states that the enrollment process for the children for 2026 – 2027 for San Francisco Friends School appears to already be complete, and accuses Mother of completing that without his input. Father attached an email as Exhibit A dated 5/1/2026 from Blackbaud Tuition Management which states: “Your 2026-2027

1 Blackbaud Tuition Management enrollment for San Francisco Friends School is complete.”

2 Father states he spoke with a Blackbaud representation during a call on “May 17, 2026” and a
3 representative informed him that an “enrollment record would not be generated unless the school,
4 SFFS, had already accepted the enrollment form submitted by Yennie” and “both parties’
5 signatures would generally be expected for enrollment authorization where there is joint legal
6 custody.” Father states, “The representative alluded to the fact that something on the school’s
7 administrative side appears to have been modified or overridden to permit the enrollment to
8 proceed with only one parent (Yennie) as I did not re-enroll the children.”

9 10) On 5/8/2026, Judge Luna denied Mother’s ex parte request pending a hearing set for 5/19/2026.

10 11) On 5/11/2026, Mother filed a request for a Domestic Violence Restraining Order (DVRO) in
11 related Case No. FDV-19-791885 seeking protection from Father for herself and on behalf of
12 their children. The Court issued a temporary restraining order, which includes an order
13 temporarily suspending Father’s parenting time, consistent with the Court’s 4/17/2026 ex parte
14 order. The matter is scheduled to be heard on 5/27/2026 at 8:30am.

15 12) On 5/12/2026, the Court made a finding that it is in the children’s best interest to maintain the
16 current temporary order for sole legal and physical custody to Mother, with no parenting time for
17 Father, pending written agreement by the parties or further Court order to be made at the
18 continued hearing (scheduled for 7/21/2026) or at the DVRO hearing (scheduled for 5/27/2026).

19 **B. Findings and Order**

20 1) **The parties are ordered to appear at 11am on 5/19/2026 in Department 404 in person or via**
21 **Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and**
22 **Instructions for Remote Appearance in San Francisco Family Court set forth above**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NATIYA SURIYA NAMESNY,

Petitioner

VS.

MARKUS JAN NAMESNY,

Respondent

) Case Number: FDI-23-797463

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Natiya Suriya Namesny (Mother) and Markus Jan Namesny (Father) have one minor child together, Charlotte (Charlie) (DOB 9/16/2019, age 6). Pursuant to the terms of a Marital Settlement Agreement of 12/29/2023, the parties have joint legal and joint physical custody of Charlie.
- 2) At a 4/28/2026 parenting time hearing, the Court issued various orders and set a review hearing for 5/19/2026 to address the summer schedule, specifically vacation and international travel.
- 3) On 5/11/2026, both parties filed update declarations. Father states he would like the parties to continue the regular parenting time schedule during the summer, with each party to have two, one-week vacations with Charlie, from Sunday to Sunday. He sets forth a proposed process for the parties to select their vacation dates as well as a proposal for the parties to provide each other with travel itineraries for all travel. He seeks an order prohibiting the parties from obtaining non-USA citizenship or a passport for Charlie without written consent of the other party. He expresses concern about Mother traveling internationally with Charlie this year, noting that Mother recently

1 told him, “ ‘If you are forcing six days on me, I’m not going to be able to live in California!’ ”
2 which Father interpreted as an indication that Mother would leave the state if the current schedule
3 remained in place.

- 4 4) Mother states in her declaration that she has no plans of leaving California, which is her home,
5 and that there is no risk that she will not return if permitted to travel to Thailand with Charlie. She
6 seeks a 14-day consecutive trip for each party during the summer and states that without 14
7 consecutive days, she would not be able to take Charlie to Thailand, where the maternal relatives
8 live. She states the maternal grandparents do not have the means to travel to the United States to
9 see Charlie, nor is there any space for them to stay in Mother’s home even if they were able to
10 come to California. Mother also requests “clarification” of the Court’s prior order, which states
11 that she has parenting time for 4 overnights, followed by Father’s parenting time of 6 overnights.
12 She states that Father’s parenting time is actually 6 days and 7 overnights.

13 **B. Findings and Orders**

- 14 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
15 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
16 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
17 child is the United States.
- 18 2) The Court finds it is in the best interest of Charlie to maintain joint legal custody to the parties
19 and the current parenting time schedule that was put in place at the 4/28/2026 hearing, as
20 memorialized in the Findings and Order After Hearing (FOAH) filed 5/4/2026. If Father’s
21 custodial time is actually 6 days and 7 overnights as opposed to 6 overnights (i.e., if it is 7
22 overnights because his first of 7 nights occurs on the night that starts at the 7pm custody
23 exchange), the parties shall submit a proposed amended FOAH to this Court. Otherwise, the
24 5/4/2026 FOAH shall remain in place.
- 25 3) The parties shall continue to follow the regular parenting time schedule during the summer. In
26 addition, each party shall be entitled to two, one-week vacations with Charlie during the summer,
27 with Father selecting his vacation weeks first, by January 31, in odd years, and Mother selecting
28 her vacation weeks second, by March 15, in odd years. In even years, Mother shall select her
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vacation weeks first, by January 31, and Father shall select his vacation weeks second, by March 15.

- 4) For all travel with Charlie, each party shall provide the other party, at least 15 days before the first travel date (unless the parties agree in writing to a shorter notice period), travel information, i.e., basic itinerary, any flight information, confirmation of a return flight if traveling by air, addresses of all accommodations, and contact information for the duration of the trip.
- 5) Neither party may travel internationally without the written consent of the other party. Requests for international travel shall be made at least 60 days prior to any travel unless the parties agree otherwise in writing to a shorter period. Mother's requests to travel with Charlie to Thailand this year, and for the parties to have 14-day consecutive vacations with Charlie over the summer break, are denied, without prejudice to the Court revisiting these requests in future years.
- 6) All other orders not in conflict with these orders shall remain in full force and effect.
- 7) Mother's attorney shall prepare the Findings and Order After Hearing.
- 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMIT RINDHE,	)	Case Number: FDI-23-797993
Petitioner	)	Hearing Date: May 19, 2026
VS.	)	Hearing Time: 9:00 AM
ISHA SINGH,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER : MOTION TO STAY ENFORCEMENT OF OCTOBER 2, 2025 ORDER
TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On 5/1/2023, Petitioner Amit Rindhe filed a Petition to dissolve his marriage to Respondent Isha Singh. Petitioner stated the parties married on 7/7/2022 and separated on 3/31/2023 for a marriage of 8 months. The parties have no minor children.
- 2) On 6/5/2023, Respondent Isha Singh filed a Response and Request for Dissolution of Marriage wherein she agreed to the facts alleged in the Petition.
- 3) On 7/25/2024, Petitioner filed an Amended Petition, now requesting an annulment on the basis of bigamy.
- 4) On 8/9/2024, Respondent filed a second Response and Request for Dissolution of Marriage.
- 5) Following a long-cause hearing on 12/2/2024, Judge Costin found that Respondent had entered a valid marriage in India to a third party that had not been dissolved at the time Respondent entered into a second marriage with Petitioner in California. Judge Costin found that Respondent's marriage to Petitioner is null and void. Judge Costin also found Petitioner to be a putative spouse. Putative spouse status was not granted to Respondent.

- 1 6) On 2/13/2025, a Nullity Judgment was entered.
- 2 7) At a hearing on 9/19/2025 (Findings and Order After Hearing filed 10/2/2025), Judge Costin
- 3 ordered Respondent to pay Petitioner \$75,000 in attorney's fees sanctions and \$13,366.76 in
- 4 reimbursements for jewelry purchased during marriage and for quasi-marital property items
- 5 purchased during marriage, for a total of \$88,367.67 owed by Respondent to Petitioner, to be paid
- 6 to Petitioner's attorney no later than 12/15/2025. Judge Costin stated in her order, "The Court
- 7 finds that \$75,000 in sanctions does not impose an unreasonable financial burden on Mr. Singh
- 8 based on her Income and Expense Declaration file dated 7/1/25 wherein indicates she has
- 9 \$400,000 in easily saleable funds. At the hearing on 9/19/25, Ms. Singh testified this amount
- 10 remains accurate." Judge Costin also noted in her order: "[F]ollowing a long-cause hearing, the
- 11 Court found that Mr. Rindhe believed in good faith that the marriage was valid, and that Ms.
- 12 Singh did not have such a good faith belief. At the long-cause hearing, and again through her
- 13 7/1/25 declaration filed herein, Ms. Singh repeatedly asserted under oath that she was mistaken
- 14 about the status of her marriage in India and that she did not sign documents that contain her
- 15 signature. The Court did not find Ms. Singh's testimony in that regard to be credible at trial and
- 16 does not find those assertions credible now. There was overwhelming evidence presented at trial
- 17 that Ms. Singh was still married to her husband in India as of 7/7/22 when she married Mr.
- 18 Rindhe. Ms. Singh's insistence on litigating this matter through trial despite that overwhelming
- 19 evidence resulted in both parties incurring substantial attorney's fees without good cause."
- 20 8) On 3/9/2026, the Court of Appeal filed a Certification Notice stating that "the Clerk's
- 21 transcript... and Reporter's transcripts... on appeal have been completed and certified to the
- 22 Court of Appeal." This pertains to Appellate Case No. A175107 wherein Respondent is appealing
- 23 the Findings and Order After Hearing filed 10/2/2025.
- 24 9) **DV Action:** The Court notes that on 4/24/2023 in related Case No. 4/24/2023, Ms. Singh filed a
- 25 Request for Domestic Violence Restraining Order (DVRO) for protection against Mr. Rindhe. A
- 26 Temporary Restraining Order (TRO) was granted for Ms. Singh's protection on 4/24/2023. The
- 27 hearing on Ms. Singh's Request for a DVRO has been continued many times. At the most recent
- 28 hearing on 12/12/2024, Judge Costin noted there is a Criminal Protective Order for Ms. Singh's
- 29 protection against Mr. Rindhe that was issued on 11/7/2024 and is set to expire on 11/7/2027. The

1 parties agreed to continue the hearing date and to maintain the Domestic Violence TRO to
2 10/1/2027, a date just prior to the expiration of the Criminal Protective Order.

3 10) **Criminal Action:** The Court also notes that in August 2024, a jury convicted Mr. Rindhe of
4 seven counts of rape by force, two counts of making criminal threats, and one count of domestic
5 abuse. Mr. Rindhe was sentenced to 21 years in prison. On 11/13/2024, Mr. Rindhe filed a notice
6 of appeal (Case No. A172053) to challenge the criminal conviction. That appeal remains pending.

7 11) **Civil Action:** The Court further notes that on 8/5/2025, Ms. Singh filed a civil action against Mr.
8 Rindhe wherein Ms. Singh is seeking damages for domestic violence, assault, battery, intentional
9 or reckless or negligent infliction of severe emotional distress; sexual battery; gender violence;
10 civil rights violations; negligence; and conspiracy. The matter is currently set for a jury trial on
11 8/3/2026. There is also a hearing set for 6/9/2026 on Mr. Rindhe's motion to stay the proceedings
12 pending the outcome of Mr. Rindhe's appeal of his criminal conviction.

13 12) On 12/3/2025, Respondent filed an ex parte Request for Order and Memorandum of Points and
14 Authorities in this action asking the Court to stay enforcement of the 10/2/2025 order requiring
15 her to pay Petitioner \$88,367.67 under Code of Civil Procedure section 918.5 "pending the
16 outcome of all litigation between Petitioner and me." Respondent argues she will likely prevail in
17 her Request for DVRO and civil action against Petitioner. Respondent believes she will be
18 entitled to damages of more than \$100,000 in the civil case. Respondent also believes she will be
19 entitled to at least \$10,000 in attorney's fees as a prevailing party under Family Code section
20 6344 in the DV action. Respondent states she will be unlikely to collect from Petitioner if the stay
21 of execution is not granted. Respondent states that Petitioner's Income and Expense Declaration
22 shows that Petitioner will not be able to satisfy any judgments in the two pending matters,
23 although Respondent also disputes the veracity of Petitioner's Income and Expense Declaration.
24 Respondent also argues that because Petitioner is in custody and serving a 21-year sentence, there
25 is "no urgency or hardship to him if enforcement is stayed pending the outcome of the appeal and
26 the other matters."

27 13) On 12/3/2025, Petitioner filed a Responsive Declaration and Memorandum of Points and
28 Authorities asking the Court to deny Respondent's request for a stay of enforcement because
29 Respondent's arguments are "speculative" and "not based on immediate risk of harm."

1 14) On 12/3/2025, this Court issued a Temporary Emergency Ex Parte Order and set the matter for
2 hearing on 12/30/2025. The Court's order states: "Request for stay granted only pending hearing
3 on this matter... This is not an emergency... The Court reserves jurisdiction to order FC 271
4 sanctions at the hearing. The parties are to brief (limited to 5 pages) the applicability of CCP
5 918.5 and 918.5(b) factors, to be filed and served 10 days before the hearing."

6 15) The parties previously agreed to continue the 12/30/2025 hearing to 2/10/2026.

7 16) On 12/15/2025, Petitioner filed a second Responsive Declaration and Memorandum of Points and
8 Authorities. Petitioner states that the parties agreed to continue the 12/30/2025 hearing to
9 2/10/2026 due to Petitioner's counsel's unavailability. Petitioner states, "Almost immediately
10 after counsel for Petitioner had faxed a joint letter to the calendar clerk requesting the February
11 10, 2026 date, counsel for Petitioner was notified by Respondent's counsel that Respondent
12 would not be available on February 10, 2026 due to a 'work commitment' and requested that the
13 hearing be continued to March. Petitioner does not agree to another delay caused by Respondent."
14 Petitioner argues that Code of Civil Procedure section 918.5 does not apply because Respondent
15 has not yet filed a Request for Order for attorney's fees in any amount in the DV action and
16 Respondent alleged in her civil complaint that she will be seeking leave of Court to amend her
17 complaint for damages / fees once the amount is ascertained.

18 17) On 12/15/2025, Petitioner's attorney filed a declaration requesting \$10,000 in attorney's fees
19 sanctions for having to file a response to Respondent's 12/3/2025 ex parte Request for Order
20 when there was no emergency.

21 18) On 1/30/2026, Petitioner filed a Brief Re Applicability of CCP 918.5 and 918.5(b). Petitioner
22 argues again that there are no pending actions that support Respondent's theory because there is
23 no pending request for fees in the DV action and Respondent has not yet amended her complaint
24 to seek monetary damages in the civil action. Petitioner also argues that the likelihood of
25 Respondent prevailing in securing monetary awards against him is "speculative at best" and
26 Respondent has not specified the amounts she is seeking in those actions.

27 19) On 2/3/2026, Respondent filed a Request to Reschedule Hearing asking the Court to reschedule
28 the 2/10/2026 hearing because Respondent's father died unexpectedly on 1/18/2026 in India and
29 she needed to remain in India to be with her family.

1 20) On 2/4/2026, the Court granted Respondent's request, continued the 2/10/2026 hearing to
2 5/19/2026, and extended the stay of enforcement of the 10/2/2025 order to 5/19/2026.

3 21) On 5/4/2026, Petitioner filed a third Responsive Declaration asking the Court to deny
4 Respondent's request for a stay of enforcement of the 10/2/2025 order.

5 22) On 5/12/2026, Respondent filed a Reply Declaration arguing that although she has not specified
6 amounts for prevailing party attorney's fees in the DV action or for monetary awards in the civil
7 action, that does not mean that she does not have pending monetary claims in those actions.
8 Respondent argues that given the criminal convictions against Petitioner, it is reasonable for the
9 Court to find that there is a high likelihood of success for Respondent to prevail in the DV and
10 civil actions.

11 23) On 5/14/2026, Respondent filed a second Request to Reschedule Hearing asking the Court to
12 reschedule the 5/19/2026 hearing to a date after 8/31/2026 because her health is impeding her
13 ability to participate in the litigation. Respondent attached letters from various doctors who state,
14 "Due to her current medical and psychological condition, she is not able to meaningfully
15 participate in court proceedings for approximately the next 3 months."

16 24) On 5/15/2026, Petitioner filed a Responsive Declaration asking the Court to deny Respondent's
17 request for a continuance.

18 25) On 5/18/2026, Respondent filed Objections to Petitioner's Responsive Declaration to Request to
19 Reschedule Hearing objecting to the entirety of Paragraph 6 on hearsay grounds.

20 26) On 5/18/2026, Respondent filed a Declaration in Support of Objections and Sanctions.

21 Respondent states that soon after she arrived in India in January 2006 she was attacked by Sumit
22 Bharti (Respondent's previous husband) and suffered physical and mental trauma. Respondent
23 states Petitioner informed Sumit Bharti that she would be in India due to her father's death.

24 Respondent states, "My stress is related to the trauma I have suffered from the conduct of
25 Petitioner, including his ongoing conduct of informing Mr. Bharti I was in India which resulted in
26 me being attacked in India when I traveled there for my father's death."

27 27) On 5/18/2026, Respondent's attorney Kathleen Morgan filed a Declaration. Respondent's
28 attorney states she will be filing a separate Request for Order seeking sanctions related to
29 discovery requests served by Petitioner which seek information that could be used to locate

Respondent in violation of the Temporary Restraining Order. Respondent's attorney asks that the Court permit her sanction request to be heard concurrently with the current Request for Order seeking a stay.

B. Findings and Order

- 1) Although the Court is sympathetic to Respondent's condition, Respondent is the one who filed the pending request for stay of enforcement of the Court's 10/2/2025 order and the request has been pending for over 5 months, despite the Court's original intention to grant the stay in December 2025 on a temporary basis pending a hearing in February 2026. Respondent's request for a continuance of the 5/19/2026 hearing is denied.
- 2) The Court finds good cause to grant a stay of enforcement of the Court's 10/2/2025 order requiring Respondent to pay Petitioner's attorney \$88,367.67 pending final Judgment in the pending DV and civil actions.
- 3) The Court finds a stay is warranted under Code of Civil Procedure sections 916 (because an appeal of the underlying order is currently pending) and 918.5. Under Code of Civil Procedure section 918.5(b), the Court finds: (a) there is sufficient likelihood Respondent will prevail in the pending DV and civil actions to warrant a stay, (b) if Respondent prevails in the DV and civil actions her monetary recovery will likely be comparable to or exceed the amount awarded in the Court's 10/2/2025 order, and (c) Petitioner stated in his most recent Income and Expense Declaration filed 4/29/2025 that he has no income and "minimal" assets.
- 4) However, the Court also finds good cause to require Respondent to provide an undertaking under Code of Civil Procedure sections 917.1 and 918. No later than Friday, 5/29/2026 at 5:00 PM, Respondent shall deliver to Room 402 a cashier's check made out to San Francisco Superior Court in the amount of \$88,367.67 to be held in an interest-bearing account by the Court. The Court will make a determination at a later date regarding which party should receive the principal and any interest accrued on this sum. The Court sets a review hearing for **Thursday, 6/25/2026 at 9:00 AM in Dept. 404** on the limited issue of reviewing Respondent's compliance with this order. Respondent shall file and serve a declaration at least 5 calendar days in advance of this hearing date regarding her compliance with this order. The Court will consider no other briefing filed by either party regarding this issue.

- 1 5) Petitioner's request for Family Code section 271 attorney's fees sanctions for responding to
2 Respondent's ex parte request for a stay is denied.
- 3 6) Respondent's attorney request that the Court permit her discovery-related sanctions request to be
4 heard concurrently with the current Request for Order seeking a stay is denied because the Court
5 is denying Respondent's request for a continuance and the next hearing date is only being set for
6 a very limited issue.
- 7 7) Respondent's objection to Paragraph 6 in Petitioner's Responsive Declaration to Request to
8 Reschedule Hearing filed 5/15/2026 is sustained. The Court agrees with Respondent that the
9 following sentence is inadmissible hearsay: "The court in India did not believe her and she is now
10 facing criminal charges in India."
- 11 8) Respondent's attorney shall prepare the Findings and Order After Hearing.
- 12 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
13 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
14 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
15 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
16 proposed order after hearing directly to the court. Failure to submit the order after hearing within
17 10 days may allow the other party to prepare a proposed order and submit it to the court in
18 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESSICA EASTWOOD,

Petitioner

VS.

KARIM VEDOL,

Respondent

) Case Number: FDI-24-800093

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHILD SUPPORT, SPOUSAL SUPPORT, AND ATTORNEYS FEES
AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jessica Eastwood (Mother) and Respondent Karim Vedol (Father) married on 5/31/2016 and separated on 7/6/2024, for a marriage of 8 years and 1 month. The parties have one minor child, Levi (DOB: 2/28/2017, age 9). Mother is represented by attorney Don Emley. Father is represented by attorney Stuart Fishman.
- 2) On for hearing is Mother's Request for Order filed 3/23/2026 wherein Mother seeks guideline child support, temporary guideline spousal support, and \$35,000 in need-based attorney's fees and costs (\$22,000 in fees incurred to date and \$13,000 in fees to be incurred through the conclusion of the case). Mother states she would be able to find work as a teacher or school counselor if it were not for her epilepsy which prevents her from working this field due to stress and memory issues. Mother states she has had two brain operations in the last year and her recovery period is expected to take up to a year and a half, at which time she hopes to return to full-time work as a teacher or school counselor if her medical condition has improved. Mother

1 states Father has been paying her \$1,000 per month in voluntary support since January 2025, an
2 amount unilaterally set by Father. Mother states Father earns more than \$300,000 per year and
3 has significant assets.

4 3) On 3/23/2026, Mother's attorney Don Emley filed a declaration stating that Mother has incurred
5 \$22,275 in fees to date for Mr. Emley to work on the case including multiple rounds of settlement
6 negotiations. Mr. Emley believes Mother will incur a total of \$35,000 in this case through final
7 settlement.

8 4) On 5/8/2026, Father filed a Responsive Declaration stating that he consents to a guideline child
9 support order and states he has already been paying Mother \$2,165 per month in child support
10 since November 2025. Father also states that he is willing to pay to Mother \$4,133 per month in
11 guideline spousal support on a temporary basis; however, Father would also like the Court to
12 order Mother to seek work and to issue a Gavron warning against her. Father states that if Mother
13 can maintain 50% custody of Levi, she is capable of working more than she currently is. Father
14 also states that he acknowledges Mother is entitled to some need-based attorney's fees, Mother
15 never responded to his November 2025 settlement letter and refuses to take any positions outside
16 of the ones she is taking in her Request for Order. Father requests \$6,200 in Family Code section
17 271 attorney's fees sanctions for Mother's attorney's failure to engage in good faith settlement
18 discussions.

19 5) On 5/12/2026, Mother filed a Reply Declaration. Mother states that Father only increased
20 voluntary support from \$1,000 to \$2,165 per month in April 2026, after she filed her Request for
21 Order (but before it was served). Mother attached a letter from her neurologist which confirms
22 she has a form of epilepsy that does not respond well to anti-seizure medication. Mother states
23 she has been recommended to remain from stressful work environments. Mother states "substitute
24 teaching has worked fairly well for me, but the pay is low and the availability of work is
25 inconsistent." Mother states that if Father "doubts the limits imposed by my medical condition, I
26 welcome an Independent Medical Examination (IME) and/or a vocational assessment that
27 incorporates the findings of an IME." Mother also states, "When my attorney first tried to discuss
28 the issue with his counterpart, my fees and costs totaled \$9,973.70, and I was asking for a
29 contribution from Karim of \$15,000 to finish the entire case, including that \$9,973.70. Now my

1 fees total more than \$30,000. Karim says he was ready to negotiate, but he didn't do that, and
2 rather than make a proposal to settle even this RFO, he has asked the Court to deny my request
3 for fees in its entirety and order me to pay his fees as a sanction under Family Code §271. That
4 does not signal good faith negotiations ahead. Unfortunately, I believe my estimate of \$35,000 in
5 fees and costs is likely to be insufficient to complete the case.”

6 6) On 5/12/2026, Mother’s attorney Don Emley filed a reply declaration. Mother’s attorney states
7 that he had to piece together Father’s earnings from prior years because Father failed to lodge the
8 documents required under Local Rule 11.7(A)(2)(e). Mr. Emley also states, “Counsel knew that
9 Karim's previous attorney ignored my requests regarding fees for ten months, and that in October
10 of 2025, I'd written to demand an answer to the question, noting that Jessica's fees had nearly
11 doubled since I'd first raised the issue. Yet when the comprehensive proposal referred to above
12 was sent, Karim proposed that ‘each party be responsible for their own fees and costs.’”

13 7) On 5/12/2026, Mother filed a Statement of Support Calculations.

14 8) On 5/14/2026, Father filed a Reply to Wife’s May 13, 2026 Reply Declaration. Father states that
15 five days before their upcoming hearing, Mother disclosed for the first time that her father has
16 “graciously suspended enforcement” of her rental obligations. Father asks to impute Mother with
17 the rental value of her current residence as untaxed income.

18 9) On 5/15/2026, Mother filed an Objection to Father’s Reply to Mother’s Reply and Motion to
19 Strike. Mother seeks to strike Father’s unauthorized sur-reply.

20 10) On 5/15/2026, Mother’s attorney Don Emley filed a Declaration for attorney’s fees and costs
21 seeking \$650 in Family Code section 271 attorney’s fees sanctions for fees and costs incurred
22 related to Father’s reply to Mother’s reply.

23 **B. Findings and Order**

24 1) Mother’s request that the Court strike Father’s reply to Mother’s reply is denied. The Court finds
25 that Father raised new and potentially relevant information regarding Mother’s living situation
26 that was not available to him by the deadline to file his Responsive Declaration. Mother’s request
27 for Family Code section 271 sanctions related to this issue is denied.

28 2) The hearing on Mother’s 3/23/2026 Request for Order is hereby continued to **Thursday,**
29 **6/4/2026 at 9:00 AM in Dept. 404** as the Court needs additional information from the parties.

- 1 3) At least 10 calendar days prior to the next hearing date, Mother shall file and serve a declaration
2 (not to exceed 5 pages in length, not including exhibits) which explains: (a) how many substitute
3 teaching hours she believes she is physically able to perform each month; (b) the number of hours
4 that are available for her to work in substitute teaching each month (regardless of her ability to
5 work those hours); (c) what is her current living situation and whether she has paid, is paying, and
6 will pay rent (and in what amounts); and (d) whether Levi is in after-school care and who pays for
7 that.
- 8 4) At least 5 calendar days prior to the next hearing date, Father shall file and serve a declaration
9 (not to exceed 5 pages in length, not including exhibits) providing any response he has to
10 Mother's new declaration. Father shall also include a summary of all voluntary support payments
11 per month he has made to Mother since 3/1/2026.
- 12 5) The Court will not consider any additional briefing, other than the briefing outlined above, in
13 advance of the next hearing date.
- 14 6) Mother's attorney shall prepare the Findings and Order After Hearing.
- 15 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
16 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
17 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
18 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
19 proposed order after hearing directly to the court. Failure to submit the order after hearing within
20 10 days may allow the other party to prepare a proposed order and submit it to the court in
21 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SAI KIT LEE,
Petitioner

VS.

SHI FEN QIN,
Respondent

) Case Number: FDI-25-801373
)
) Hearing Date: May 19, 2026
)
) Hearing Time: 9:00 AM
)
) Department: 404
)
) Presiding: AI MORI
)
)

PROVE-UP HEARING RE: REQUEST FOR ENTRY OF TRUE DEFAULT JUDGMENT
TENTATIVE RULING

The parties are ordered to appear in Department 404 in person or via Zoom video. Petitioner shall be prepared to explain to the Court why the Petition and Summons were mailed to the Santa Cruz Ave. address (when Petitioner previously indicated Respondent no longer lives there) and whether Respondent did indeed receive those papers and sign the Notice and Acknowledgment of Receipt.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above

A. Procedural History

- 1) On 5/9/2025, Petitioner Sai Kit Lee filed a Petition for Dissolution. Petitioner states the parties married on 1/4/2022 and separated on 1/1/2024, for a marriage of 2 years. Petitioner also states the parties have no minor children.
- 2) On 5/16/2025, Petitioner filed an Application for Order for Posting asking that Petitioner be permitted to serve Respondent Shi Fen Qin with the Summons and Petition by posting. Petitioner

1 stated Respondent had vacated their shared residence located on Santa Cruz Ave. in San
2 Francisco on 11/1/2024 and Petitioner had not been able to locate Respondent since then.

- 3) On 6/25/2025, Judge Chan denied Petitioner's Request for an Order for Posting.
- 4) On 7/28/2025, Petitioner filed a Proof of Service of Summons indicating that the Petition,
5 Summons, blank Response, and Petitioner's Income and Expense Declaration had been mailed to
6 the address of the parties' previously shared residence on Santa Cruz Ave. in San Francisco
7 (which is also Petitioner current address) on 7/11/2025. Petitioner attached a Notice and
8 Acknowledgment of Receipt to the Proof of Service of Summons purportedly signed by
9 Respondent on 7/19/2025.
- 5) On 1/6/2026, Petitioner submitted a True Default Judgment for the Court's review.
- 6) On 3/12/2026, the Court issued an Order Setting Prove-Up Hearing Re: Request for Entry of True
12 Default Judgment ordering Petitioner to appear on 5/19/2026 at 9:00 AM to explain to the Court
13 why the Petition and Summons were mailed to the Santa Cruz Ave. address (when Petitioner
14 previously indicated Respondent no longer lives there) and whether Respondent did indeed
15 receive those papers and sign the Notice and Acknowledgment of Receipt.
- 7) The Court notes that Respondent has filed no pleadings in this matter to date.

17 **B. Findings and Order**

- 18 **1) The parties are ordered to appear. Petitioner shall be prepared to explain to the Court why**
19 **the Petition and Summons were mailed to the Santa Cruz Ave. address (when Petitioner**
20 **previously indicated Respondent no longer lives there) and whether Respondent did indeed**
21 **receive those papers and sign the Notice and Acknowledgment of Receipt.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LILIA DEL CARMEN BA CELIS,

Petitioner

VS.

JOSUE A. GOMEZ BE,

Respondent

) Case Number: FDI-25-802237

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF REQUEST FOR ORDER: CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear at 9am on 5/19/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above

A. Procedural History

- 1) Lilia Del Carmen Ba Celis (Mother) and Josue Gomez Be (Father) have one minor child together, Aiden (DOB 9/25/2015, age 10). Mother recently filed a petition for dissolution, on date, and there are no custody orders in place.
- 2) On 2/4/2026, Father filed a request for joint legal and physical custody of Aiden with parenting time for Father from Thursday at 4pm until Sunday at 9pm. He states that the parties lived together as a family until Mother filed a petition for dissolution in California and then suddenly moved to Oregon without Father's permission, and against Aiden's wishes. Father asks for Aiden to be immediately returned to California so that they can resume the relationship they shared throughout the child's life.
- 3) Mother has not filed a response.

1 4) The parties attended mediation on 5/1/2026 and did not reach an agreement.

2 **B. Findings and Orders**

3 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
4 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
5 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
6 child is the United States.

7 2) **The parties are ordered to appear in person or via Zoom at 9am on 5/19/2026 in**
8 **Department 404.**